

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, SEPTEMBER 15, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, September 15, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, September 14, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0085912 Creditors Adjustment Bureau v. D&L Siding

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Strike Defendant's Answer

Any party may serve and file a notice of motion to strike the whole or any part of a pleading within the time allowed to respond to the pleading. (Code Civ. Proc., § 435, subd. (b)(1).) Upon such a motion, or at any time in its discretion, a court may strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).)

Plaintiff moves to strike defendant's answer because defendant is currently not represented and, as an entity defendant, may not appear in court on its own behalf. While a loss of attorney representation does not create an automatic forfeiture of its rights, an uncooperative corporate entity that is unwilling to obtain new counsel risks eventual loss of its rights through non-representation. (*Thomas G. Ferruzzo, Inc. v. Superior Court* (1980) 104 Cal.App.3d 501, 504.) However, attorney representation of a corporation is not an absolute prerequisite to a court's power to hear or determine a case. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1149.) In its

sound discretion, a court may determine it is “more appropriate and just to treat a corporation’s failure to be represented by an attorney as a defect that may be corrected[.]” (*Ibid.*)

Here, the plaintiff fails to show that the defendant’s failure to obtain new representation amounts to an incurable defect at this time. Defendant’s prior counsel filed defendant’s answer with no glaring defect that would warrant striking the answer. Further, the order granting defense counsel’s withdrawal was only recently entered, and therefore, the court permits the defendant a reasonable amount of additional time to seek and obtain new counsel. The motion is denied without prejudice.

The court on its own motion sets the case for an order to show cause hearing regarding defendant’s representation and possible striking of the answer on **November 3, 2026 at 9:00 a.m. in Department 32**. Plaintiff shall file and serve notice of entry of this order by September 25, 2026.

2. M-CV-0097614 LHE Woodcreek W. Apts. v. Alomar, Mohanad

This tentative ruling is issued by **Commissioner Albert A. Erkel**. Oral argument will be heard on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel**. Department 30 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to Set Aside Judgment

Defendant Mohanad Alomar moves to set aside judgment pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

The court may “upon any terms as may be just” set aside an order due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside an order must be made “within a reasonable time, in no case exceeding six months” from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, the motion is timely filed as it was filed mere days after judgment was entered and defendant subsequently sought and obtained an order shortening time to have the hearing advanced. As to grounds for relief, defendant argues they were out of state and booked a flight to return to California for the trial. Defendant argues that the flight was delayed for an operational issue and for a weather issue, so the second leg of the flight had to be rescheduled. Defendant states they arrived at the Sacramento airport at 9:30 a.m. the morning of trial, and while they came directly to the courthouse, the trial was already over. While these facts, if supported, may well show “mistake, inadvertence, surprise, or excusable neglect,” they are unsupported by any evidence as defendant provides no declaration. As such, there is no evidence on which the court could grant the requested relief.